

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF VIRGINIA

Civil Action No. SYN-WDVA-25-CV-0733

Record class: plaintiff's paragraph-by-paragraph fact response.

Mara Ellison's Response to Statement of Material Facts

Filed December 12, 2025.

Response convention and opening matters

Ellison responds to Officer Rusk's numbered statement. “Admitted” accepts the stated historical point for this motion, not every characterization or legal inference. “Disputed” identifies competent contrary evidence. Attribution is important: admitting that Rusk testified to an event does not admit that the event occurred.

1–2. Admitted that the amended complaint leaves an individual-capacity Fourth Amendment claim against Rusk, who acted under color of law. The former municipal and supervisory defendants are not part of this motion. Vega is a witness rather than a defendant.

3. Admitted that the encounter occurred in the exterior Building C breezeway at Larkspur Court Apartments. Ellison disputes any inference that the railing or stairs created an immediate danger before Rusk seized her wrist. She was seated, remained at the complex, and did not move to flee.
4. Ellison agrees attributed testimony must remain distinct from an adjudicated event. She disputes Rusk's suggestion that his evidence eliminates genuine factual conflict.

Ellison fact response — dispatch and initial contact

5–6. Admitted. Iris Ellison requested a welfare check for a medication and mental-health crisis, reported no weapon or threat, and described no crime. Dispatcher Lena Cho transmitted that protective purpose. The recording also preserves Iris's request for a calm approach because unexpected touch could worsen Mara's distress.

7. Admitted as to the general arrival and contact times. Ellison relies on the authenticated timeline rather than treating any officer clock as perfectly synchronized without documented alignment.
8. Admitted that Ellison was seated with empty hands visible and was distressed. She disputes the characterization that she refused all assessment. She answered some questions, asked why police were present, and did not immediately comply with every directive.
9. Admitted that Rusk's wrist restraint at approximately 19:53:02 constituted a seizure. Ellison states the grip was painful and that Rusk escalated before communication and lower-force options were exhausted. She does not contend the existence of a seizure alone resolves whether its manner was reasonable.

Ellison fact response — movement and alleged danger

10. Admitted only that Ellison pulled or recoiled after the wrist grasp. Disputed that she actively twisted in an assaultive manner. Her movement was a response to pain, not an effort to harm, escape, or gain equipment.
11. Disputed that Ellison struck Rusk's forearm. Rusk says she did; Ellison consistently denies it; Vega did not see a completed strike; and the cameras do not reliably show the relevant hands. The lack of visible injury to Rusk is not conclusive but is part of the record.
12. Disputed that Ellison reached toward the duty belt. Ellison denies any reach or grab. Vega cannot corroborate one. No recording supplies a reliable hand-to-belt image during the critical seconds.
13. Admitted that no weapon was reported, displayed, or recovered and that Ellison made no verbal threat. Disputed that her conduct created a new equipment-access danger.
14. Admitted that Ellison did not flee. Disputed that low-risk pulling presented an immediate safety exigency. On her evidence, the asserted strike and reach never occurred.

Ellison fact response — media evidence

15. Admitted that Sergeant Lila Grant exported the officer recordings and that the identified copies are authentic under the parties' stipulation. Authenticity does not concede interpretation or completeness of view.
16. Admitted that the hand-and-belt area is not reliably visible from approximately 19:53:08 through 19:53:22. The obstruction prevents the defense from invoking a clear-video exception to ordinary Rule 56 treatment.
17. Admitted that the quoted words and other sounds are present. Disputed that the command “stop pulling” proves a forearm strike, belt reach, or dangerous resistance. Ellison acknowledges pulling caused by pain, which is consistent with both audible statements.
18. Admitted that Professor Adrian Crane rejects generated reconstruction of occluded movement. His methods preserve source pixels and do not claim that missing imagery favors Ellison.
19. Admitted that the recordings establish a bounded chronology while leaving the central historical conflict unresolved. That admission supports denial of judgment because Ellison's sworn account is not blatantly contradicted by the media.

Ellison fact response — device, takedown, and handcuffing

20–21. Admitted that Rusk used contact mode during the takedown and that the device logged one approximately five-second cycle. Ellison disputes any suggestion that contact mode or a single activation is insignificant. The mode intentionally produces localized pain.

22–23. Admitted that the image clears after activation and that handcuffing follows without a second cycle. Ending force after control was achieved does not establish that the initial cycle was justified.

24. Disputed as to Rusk's purpose and perceived need. Ellison cannot testify to his unexpressed state of mind, but objective reasonableness is assessed on circumstances the Court must view for her. On those facts, there was no strike, reach, weapon access, flight, or immediate threat. She admits the challenged force consists of the drive stun, forcible descent, and associated control, not an additional post-cuff strike.

Ellison further states that two officers were present and that communication, modified wrist control, spacing, and assistance remained feasible before electrical pain was imposed.

Ellison fact response — medical and post-contact record

25. Admitted that Paramedic Mateo Cole arrived after the force and cannot testify as an eyewitness to hidden movements. His clinical observations and attributed patient history remain admissible for their proper purposes.
26. Admitted that the fixed findings are a wrist abrasion, two superficial contact burns, shoulder strain, and no fracture. Disputed that absence of fracture renders the force de minimis or reasonable.
27. Admitted that Ellison promptly denied striking or reaching and that Rusk reported the opposite. Those competing contemporaneous accounts reinforce rather than eliminate the trial dispute.
28. Admitted that Ellison cooperated with medical care after conditions stabilized. She does not offer later cooperation as conclusive proof of earlier movement. It is part of the total factual context.
29. Admitted that Rusk reported forearm soreness and did not seek hospital care. Ellison disputes the asserted contact itself. She agrees the absence of lasting injury is not standalone proof but may be considered with Vega's limited view, her denial, and the occluded media.

Ellison fact response — reviews, experts, and legal posture

30. Admitted that Lieutenant Marcus Hale conducted an administrative review with no new camera view. Ellison disputes treating its classification as a credibility determination or a ruling on constitutional law.

31–33. Admitted as fair summaries of the experts' bounded positions. North finds the cycle disproportionate on Ellison's assumptions. Defense expert Rowan Pike's equipment-access rationale depends on the disputed strike and reach and does not carry over when those acts are removed. Crane addresses media limits rather than force law.

34. Admitted that material disputes remain and no expert may create hidden video. Rusk's assertion that his account nonetheless must prevail is denied.

35–37. Admitted as to discovery, filing dates, and the claim's scope. The parties' media stipulation preserves interpretation objections.

38–39. Admitted that Rusk invokes qualified immunity and that the Court may resolve legal questions on stated assumptions. Ellison disputes his entitlement. The assumed facts cannot include the contested strike or belt reach, and a legal ruling on her version cannot be converted into a factual finding against either party.